

**Gold Creek Estates Owners' Association v. Valley Springs
Gold Creek, Inc., et al.**

17CV42103

**MOTION TO CONSOLIDATE ACTIONS FOR
PRE-TRIAL PURPOSES**

Defendant Cleigh Ryan Voorhees (Voorhees) moves, pursuant to Code of Civil Procedure section 1048 (a), for an order consolidating Calaveras County Superior Court Case Nos. 17CV42103 and 20CV44819 for pre-trial purposes on the grounds that the actions involve common questions of law and fact and that consolidation would avoid unnecessary costs, delays, and duplication.

As an initial matter, through his support memorandum, Voorhees “requests that Special Master Sarah Burke manage both the *Valley Springs* and *Voorhees* matters.” (Support Memo at 6:16-17.) Voorhees did not, however, include this relief, or the grounds therefore, in the notice of motion. As such, the matter is not properly before the Court through the present motion. (See CCP §1010: “the notice of a motion, other than for a new trial, must state...the grounds upon which it will be made”; see also Rule of Court 3.1110: “[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”; see also *People v. American Sur. Ins. Co.* (1999) 75 Cal.App.4th 719, 726.)

Case No. 20CV44819 involves only two parties: Plaintiff Gold Creek Estates Owners' Association (Plaintiff) and Defendant Voorhees. These parties are also the plaintiff and a defendant, respectively, in 17CV42103. Both Plaintiff and Voorhees are parties in and to that Stipulation and Order of Reference entered on February 28, 2018, in 17CV42103 (Reference). By that Reference, these parties agreed to have a Special Master “coordinate all discovery and all law and motion matters related to discovery.” (See Reference at 2:5-6.) Of note, however, it appears that three other defendants in 17CV42103 opted out of the Reference, and there is no evidence before the Court on this motion that a fourth defendant agreed to the Reference. (See Reference at p. 7.) It therefore appears that discovery matters involving these co-defendants remain with this Court.

In this context, Voorhees argues that consolidating the cases for pre-trial matters would “avoid unnecessary costs, delays, and duplications.” Voorhees fails to convince the Court that this is the case. Again, Voorhees' request to appoint the Special Master to “manage” 20CV44819 is not properly before the Court. Through this motion then, Voorhees asks the Court to consolidate a matter between himself and Plaintiff in which discovery matters are before the Court

(20CV44819) with one in which discovery matters between these two parties have been referred to the Special Master (17CV42103). The Court does not find that the requested consolidation would “tend to avoid unnecessary costs or delay.” (CCP§ 1048, (a).) In this context, the Court declines to exercise its discretion under CCP1048 and order the matters consolidated for pre-trial purposes.

Based on the foregoing, Defendant Voorhees’ motion is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.